

22STCV13449 22STCV13449

County: los-angeles

Division: Civil Law and Motion

Department: 310

Hearing date: 2026-07-16

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Case Number: 22STCV13449 Hearing Date: July 16, 2026 Dept: 310

Tentative Ruling

Judge Kevin C. Brazile

Department 310

Hearing Date: July 16, 2026

Case Name: Hennig, Kramer, Ruiz & Singh, LLP v. Seretan, et al.

Case No.: 22STCV13449

Matter: Motion to Tax Costs

Moving Party: Defendant Wendy Seretan

Responding Party: Plaintiff Hennig, Kramer, Ruiz & Singh, LLP

Ruling: The Motion is granted in part, but see below.

Moving party to give notice.

The Court encourages all parties to appear remotely via LA CourtConnect. If submitting on the Court's tentative ruling, please follow the instructions provided above.

This is an action in which Plaintiff Hennig, Kramer, Ruiz & Singh, LLP, Defendant Wendy Seretan's former attorney, claims that Defendant failed to compensate Plaintiff after Plaintiff was able to settle Defendant's case. On April 22, 2022, Plaintiff filed the operative Complaint asserting claims for (1) breach of contract, (2) breach of the implied covenant of good faith and fair dealing, (3) conversion, (4) quantum meruit, and (5) unjust enrichment.

On March 5, 2026, after a bench trial, the Court found “in favor of plaintiff as alleged in the complaint. Plaintiff is entitled to the lien amount of \$135,806.67. Plaintiff is entitled to the costs of the suit.”

On May 14, 2026, Plaintiff filed a memorandum of costs in the amount of \$12,313.59.

“If the items appearing in a cost bill appear to be proper charges, the burden is on the party seeking to tax costs to show that they were not reasonable or necessary. On the other hand, if the items are properly objected to, they are put in issue and the burden of proof is on the party claiming them as costs. Whether a cost item was reasonably necessary to the litigation presents a question of fact for the trial court and its decision is reviewed for abuse of discretion.” (Ladas v. Cal. State Auto. Assn. (1993) 19 Cal.App.4th 761, 774.)

“Allowable costs shall be reasonably necessary to the conduct of the litigation rather than merely convenient or beneficial to its preparation.” (CCP § 1033.5(c)(2).)

Items not specifically mentioned in CCP § 1033.5 “may be allowed or denied in the court's discretion.”

The Court taxes \$16.22 in costs, which Plaintiff admits was duplicative.

The Court taxes \$1,152.03 in “other costs” consisting primarily of parking, Uber, food, and various other costs that the Court considers overhead.

Next, with respect to the category of “deposition costs”, the amount listed is \$4,593.55; however, Defendant claims that the videographer for some of the depositions was Courtney Luengo, who actually works for Plaintiff. Thus, it is not apparent whether the deposition costs are proper or actually incurred. This will be discussed at the Motion hearing, and both parties should come forth with evidence on this issue, although the burden as to the propriety of these costs has shifted to Plaintiff.

The remainder of the costs are compensable, reasonable, and proper.

The Motion is granted in part. Again, the parties (particularly Plaintiff) should come forth with evidence as to the propriety of the deposition costs.

Moving party to give notice.